

TERMS AND CONDITIONS

PopupReach Inc.

Effective Date: October 22, 2025

1. Agreement to Terms

By accessing and using PopupReach Inc.'s platform ("Service") that delivers mobile pop-up promotions, offers, and our AI-powered shopping assistant and business analytics tools (collectively, "Services"), you acknowledge that you have read, understood, and agree to be bound by these Terms and Conditions ("Terms"). If you do not agree to be bound by these Terms, you are not authorized to access, download, or use our Services.

2. Use License

2.1 Grant of License

PopupReach Inc. grants you a limited, non-exclusive, non-transferable, revocable license to access and use our Services, provided you comply with these Terms and all applicable laws and regulations.

2.2 Restrictions

You agree not to:

- Reproduce, duplicate, copy, or resell any part of the Services
- Modify or create derivatives of the Services
- Attempt to gain unauthorized access to the Services or related systems
- Use the Services for unlawful or fraudulent purposes
- Reverse engineer, decompile, or attempt to discover source code
- Engage in any form of automated data harvesting or scraping
- Interfere with or disrupt the Services or servers
- Transmit viruses, malware, or any harmful code

3. User Accounts

3.1 Account Creation

To use certain features of the Services, you may be required to create an account. You agree to provide accurate, current, and complete information and to update this information as necessary. You are responsible for maintaining the confidentiality of your account credentials and password.

3.2 Account Responsibility

You are solely responsible for all activities conducted under your account. You agree to notify us immediately of any unauthorized use of your account or any other security breach.

3.3 Account Eligibility

You represent and warrant that you are at least 18 years of age and have the legal authority to enter into this agreement. If you are acting on behalf of a business, you represent that you have the authority to bind that business to these Terms.

4. Acceptable Use Policy

You agree to use the Services only for lawful purposes and in a way that does not infringe upon the rights of others or restrict their use and enjoyment. Prohibited behavior includes:

- Harassing, threatening, intimidating, or abusive conduct
- Transmitting obscene, defamatory, or misleading content
- Creating misleading or false offers and promotions
- Violating intellectual property rights
- Engaging in fraud, deception, or misrepresentation
- Attempting to gain unauthorized access to systems
- Violating any applicable laws or regulations
- Engaging in any activity that disrupts the Services

5. Service Features

5.1 Mobile Pop-Up Delivery

PopupReach delivers promotional offers and deals to customers through mobile pop-ups. By using our Services, you consent to receive these communications. You may manage notification preferences through your account settings.

5.2 AI Shopping Assistant

Our AI Shopping Assistant analyzes customer purchase history and behavior to recommend the most cost-effective shopping options. The Assistant:

- Provides deal recommendations and price comparisons
- Identifies cost-saving opportunities
- Works across multiple retailers and platforms

5.3 AI Business Assistant

For business users, our AI Business Assistant provides:

- Deal and offer recommendations based on market analysis
- Automated deal creation and optimization
- Performance analytics and insights
- Competitive market intelligence

6. Intellectual Property Rights

6.1 Service Ownership

All content, features, and functionality of the Services, including but not limited to software, technology, algorithms, trademarks, logos, and designs, are owned by PopupReach Inc., its licensors, or other providers of such material and are protected by copyright, trademark, and other intellectual property laws.

6.2 User Content

By submitting content to the Services (including offers, deals, descriptions, images, and other materials), you:

- Retain ownership of your content
- Grant PopupReach Inc. a worldwide, non-exclusive, royalty-free license to use, display, and distribute your content
- Warrant that your content does not infringe third-party rights
- Accept responsibility for the accuracy and legality of your content

6.3 DMCA and Copyright Infringement

If you believe that content on our Services infringes your copyright, please send a notice to legal@popupreach.com with the following information: your contact details, description of the copyrighted work, location of the allegedly infringing material, and a statement under penalty of perjury that the complaint is valid.

7. Payment and Billing

7.1 Subscription Fees

Some features of the Services may require a paid subscription or may involve transaction fees. You agree to pay all applicable fees as described. All fees are in Canadian dollars and are exclusive of applicable GST/HST unless stated otherwise.

7.2 Billing

We will bill your account on a recurring basis according to your subscription plan. You authorize us to charge your designated payment method. If payment fails, we may suspend your access to the Services.

7.3 Refunds

Refund policies are determined by your subscription plan and are detailed in your account settings. All refund requests must be made within the specified timeframe. Decisions regarding refunds are at PopupReach Inc.'s sole discretion.

7.4 Price Changes

We may modify pricing at any time. Price changes will be communicated at least 30 days in advance. Continued use of the Services after a price change constitutes acceptance of the new pricing.

8. Disclaimer of Warranties

DISCLAIMER: THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. POPUPREACH INC. DISCLAIMS ALL WARRANTIES, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE.

9. AI Recommendations Disclaimer

AI-powered recommendations and insights provided by our Shopping Assistant and Business Assistant are:

- Based on algorithmic analysis of available data
- Not guaranteed to be accurate or complete
- Provided for informational purposes only
- Not financial, legal, or business advice

You are responsible for verifying all recommendations independently before taking any action. PopupReach Inc. assumes no liability for decisions made based on AI recommendations.

10. Limitation of Liability

LIMITATION OF LIABILITY: TO THE FULLEST EXTENT PERMITTED BY CANADIAN LAW, POPUPREACH INC. SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR ANY LOSS OF PROFITS, REVENUE, DATA, OR USE, ARISING OUT OF OR RELATED TO THESE TERMS OR YOUR USE OF THE SERVICES, REGARDLESS OF THE FORM OF ACTION AND WHETHER OR NOT WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. OUR TOTAL LIABILITY SHALL NOT EXCEED THE AMOUNT YOU PAID TO POPUPREACH INC. IN THE PAST 12 MONTHS.

11. Indemnification

You agree to indemnify, defend, and hold harmless PopupReach Inc. and its officers, directors, employees, and agents from any claims, damages, losses, costs, or expenses arising from: (1) your use of the Services; (2) your violation of these Terms; (3) your violation of any law or the rights of a third party; or (4) content you submit to the Services.

12. Third-Party Links and Services

The Services may contain links to third-party websites and applications. PopupReach Inc. does not control and is not responsible for the content, accuracy, or practices of third-party services. Your use of third-party services is governed by their terms and conditions. We encourage you to review the terms and privacy policies of any third-party services before interacting with them.

13. Modification and Termination

13.1 Modifications to Services

PopupReach Inc. may modify, suspend, or discontinue the Services (or any part thereof) at any time with or without notice. We will not be liable for any modification, suspension, or discontinuation of the Services.

13.2 Termination of Account

We may terminate or suspend your account at any time, with or without cause, including but not limited to:

- Violation of these Terms
- Non-payment of fees
- Fraudulent or illegal activity
- Business or operational reasons

13.3 Effect of Termination

Upon termination, your right to use the Services immediately ceases. All provisions of these Terms that by their nature should survive termination (including intellectual property, limitation of liability, and indemnification) shall survive.

14. Confidentiality

You acknowledge that the Services, including algorithms, methodologies, and techniques, contain confidential information of PopupReach Inc. You agree to maintain the confidentiality of this information and not to disclose it to third parties without our consent.

15. Dispute Resolution

15.1 Governing Law

These Terms and your use of the Services are governed by and construed in accordance with the laws of the Province of Manitoba and the laws of Canada applicable therein, without regard to its conflict of law principles. You consent to the exclusive jurisdiction of the courts located in Winnipeg, Manitoba.

15.2 Dispute Resolution Process

Before initiating litigation, the parties agree to attempt to resolve disputes through good faith negotiation. If negotiation fails within 30 days, either party may pursue legal remedies in the courts of Manitoba. Disputes will be subject to the civil procedure rules of Manitoba.

16. Compliance with Laws

You agree to comply with all applicable federal, provincial, and municipal laws and regulations in Canada in your use of the Services. PopupReach Inc. operates in accordance with Canadian federal and provincial laws, including but not limited to the Competition Act, Consumer Protection Laws, and all applicable privacy legislation. You are responsible for determining whether the Services are legally available in your jurisdiction.

17. Promotional Offers Compliance

For businesses using PopupReach to create and distribute offers:

- All offers must be truthful, accurate, and compliant with all applicable Canadian laws and consumer protection regulations
- You are responsible for honoring all promotional offers and complying with provincial consumer protection laws
- You must include clear terms and conditions for all offers
- You must comply with all Canadian advertising standards and regulations
- PopupReach Inc. is not responsible for your offers or customer transactions

18. Severability

If any provision of these Terms is found to be invalid or unenforceable under Canadian law, the remaining provisions shall continue in full force and effect to the maximum extent permitted by law.

19. Entire Agreement

These Terms, together with our Privacy Policy and any other policies referenced herein, constitute the entire agreement between you and PopupReach Inc. regarding the Services and supersede all prior agreements and understandings.

20. Amendments to Terms

PopupReach Inc. may modify these Terms at any time. Changes will be effective upon posting to the Services. Your continued use of the Services following the posting of changes constitutes your acceptance of the modified Terms. We will provide notice of material changes at least 30 days in advance.

21. Contact Information

For questions about these Terms and Conditions, please contact:

PopupReach Inc.

Email: info@popupreach.com

Phone: +1 (431) 445-0998

Address: 100 Innovation Dr #44, Winnipeg, MB R3T 6A8, Canada

Last Updated: October 22, 2025